

Amendment No. 3 to HB1455

Zachary
Signature of Sponsor

AMEND Senate Bill No. 1493

House Bill No. 1455*

by inserting the following as a new subdivision (3) in § 47-18-5901 in SECTION 2, and redesignating the existing subdivision (3) and subsequent subdivisions accordingly:

(3) "Child safety incident" means a chatbot interacting with a minor user and engaging in behavior that, if the behavior had been engaged in by a human being, would be deemed to intentionally or recklessly cause death or bodily injury to the minor user or damage to the mental health of the minor user that constitutes severe emotional distress;

AND FURTHER AMEND by adding the following language as a new § 47-18-5906 in SECTION 2:

47-18-5906.

(a) The attorney general and reporter shall establish a form and process by which a person who operates a chatbot in this state or a member of the public may report a child safety incident to the attorney general and reporter. The form and process must allow the report to include, at a minimum:

- (1) The date of the child safety incident;
- (2) The reasons the reporter believes the incident qualifies as a child safety incident; and
- (3) A short and plain statement describing the child safety incident.

(b) A person who operates a chatbot in this state shall report any child safety incident pertaining to one (1) or more of the person's chatbots to the attorney general and reporter within fifteen (15) days of discovering the child safety incident.

(c)

(1) The attorney general and reporter may transmit reports of child safety incidents made pursuant to this section to the general assembly, the governor, the federal government, or appropriate state agencies.

(2) The attorney general and reporter may consider any risks related to trade secrets, public safety, cybersecurity of a person who operates a chatbot, or national security when transmitting such reports.